ARIC
مركز أبحاث وابتكار الطيران
Aerospace Research and Innovation Center

Registration No. 100503552000003
P.O. Box 127788
Abu Dhabi, United Arab Emirates

Bill To
Khalifa University of Science and Technology
Al Saada Street Cor. Airport Road/PO Box 127788/ABU DHABI ABU DHABI
VAT Registration No
100503552000003

Remit To
P.O. Box 127788 , Abu Dhabi, United Arab Emirates

Invoice	Document Num.
406000002	406000002
Billing Date	**Reference**
21-DEC-20	406000002
Customer Number	**Customer Location**
843-10004	Abu Dhabi

Terms	Currency	Rate	Due Date	Customer Contact	Phone	Fax
IMMEDIATE	AED	1	21-DEC-20			

No.	Description	Qty	Tax	Tax Rate	Unit Price	Extended Amount
1	KUST yearly Contribution for ARIC for years 2021/2022	1	No	0 %	1,600,000.00	1,600,000.00
1.1	VAT Line		No	0 %	0.00	0.00

BANK DETAILS	
Bank Name	FIRST ABU DHABI BANK
Branch Name	ABU DHABI KHALIFA ST
A/C No.	4021003284369050
	KHALIFA UNI OF SCIE N TECHARIC FND
IBAN	AE210354021003284369050
SWIFT Code	NBADAEAAXXX

Subtotal	1,600,000.00
Tax	0.00
Shipping	0.00
Total	1,600,000.00

TOTAL	**One Million Six Hundred Thousand Dirhams And Zero Fils*****

Special Instructions

Please quote the invoice number and the customer name with your payment / bank transfer to ensure proper credit to your account. If you have any questions concerning this invoice, please contact: **finance@ku.ac.ae**.

AAA

THANK YOU

جامعة خليفة
Khalifa University
Finance Dept.

EXECUTION DOCUMENT: MDC\2464742_1

AGREEMENT FOR COLLABORATIVE RESEARCH PROGRAM

At

AEROSPACE RESEARCH AND INNOVATION CENTER (ARIC)

Between

AEROSPACE HOLDING COMPANY (AHC)

and

KHALIFA UNIVERSITY OF SCIENCE AND TECHNOLOGY (KHALIFA UNIVERSITY)

This agreement (the "**Agreement**") is made this 29th day of September 2019 (the **Signature Date**)

BETWEEN:

(1) Aerospace Holding Company LLC (AHC), a limited liability company established under the laws of the Emirates of Abu Dhabi, and whose principal address is PO. Box 45005, Abu Dhabi , United Arab Emirates (**AHC**); and

(2) Khalifa University of Science and Technology, an independent legal entity established by Law number (5) for the year 2017, as successor to Khalifa University of Science, Technology and Research, The Petroleum Institute and Masdar Institute of Science and Technology, having its place of business in the UAE Emirate of Abu Dhabi, P.O. Box 127788 (**Khalifa University**).

AHC and Khalifa University shall be referred to herein either individually as a **Party** or collectively as the **Parties**.

WHEREAS:

(A) Khalifa University is an independent, non-profit co-educational institution with the vision to be a leading international center of higher education in technology and science. Khalifa University endeavors to serve the Emirate of Abu Dhabi, UAE society, the region and the world.

(B) AHC is a wholly owned subsidiary of Mubadala Investment Company PJSC, which is a wholly owned investment vehicle of the Government of Abu Dhabi with the mandate to generate sustainable economic benefits for Abu Dhabi through the development of, and investment in, business ventures related to wide range of sectors (including aerospace and aviation) in partnership with local, regional and international investors.

(C) AHC and Khalifa University of Science, Technology and Research entered into a definitive agreement on 28 October 2013 (**2013 ARIC Agreement**) concerning the creation of the "Aerospace Research and Innovation Center (**ARIC** or the **Center**) at Khalifa University of Science, Technology and Research and the execution of several joint research projects in the Center over the past five (5) years.

(D) Khalifa University of Science, Technology and Research has been replaced by Khalifa University of Science and Technology in terms of the provisions contained in said Law.

(E) AHC and Khalifa University continue to have a common interest in the advancement of technology and knowledge in the aerospace and aviation areas.

(F) AHC and Khalifa University plan to continue this collaboration for the Term on a jointly-funded research Program (as defined below) to be executed at the Center with a primary focus on two (2) main research areas:

a. Advanced Materials and Processing Technologies. This includes Additive Manufacturing, Advanced Composite Processing Techniques, Thermoplastic materials and Processes, and Multi-Functional Materials.
b. Applied Digital Technologies for Part Manufacturing and maintenance, repair and overhaul (MRO) operations. This includes Robotic Manufacturing and Assembly Technologies, Robotic Inspection Systems, Industrial Internet of Things (IIOT), Artificial intelligence (AI), Virtual Intelligence (VI), and Blockchain.

(G) Strata Manufacturing PJSC (**Strata**) and Aerospace Turbine Services & Solutions LLC (**ATS&S**) are wholly-owned subsidiaries of Mubadala Investment Company PJSC and will be primary beneficiaries of the Program, as detailed in Clause 7 below.

(H) This Agreement captures the commitment of the Parties to jointly-fund the Program, which comprises specific projects in the two main areas described in recital (F) (**Research Projects**).

(I) The Parties wish to agree, through this Agreement, how the Program shall be funded and managed over the Term, including ownership and exploitation of intellectual property rights created as a result of implementing the Program.

NOW, THEREFORE, it is agreed as follows:

1. INTERPRETATION

1.1 In this Agreement:

Affiliate shall mean in respect of a Party, any body corporate which:

i. directly or indirectly controls the Party in question;

ii. is directly or indirectly controlled by the Party in question; or

iii. is directly or indirectly controlled by a company (which shall include any body corporate) which controls the Party in question;

for the purposes of this definition, a company is directly controlled by another company holding shares carrying more than fifty percent (50%) of the votes exercisable at a general meeting (or equivalent meeting) of the first mentioned company; and a particular company is indirectly controlled by a company (hereinafter referred to as the "Parent Company") if a series of companies can be specified beginning with the Parent Company and ending with a particular company, so related that each company in the series, except the Parent Company, is directly controlled by one or more of the preceding companies in the series. For the purposes of this definition, Strata Manufacturing PJSC, Aerospace Turbine Services & Solutions LLC and Mubadala Investment Company PJSC shall be deemed to be an Affiliate of AHC and, for the avoidance of doubt, the Government of Abu Dhabi shall not be considered a Parent Company or an Affiliate of AHC.

Agreement shall mean the provisions of this document and shall include the Appendices.

Background IPR shall mean any information and technology, including IPR, made available by a Party for the purposes of the Program, which was (i) in existence prior to the commencement of the Program; or (ii) generated after the commencement of the Program but outside of the Program, and to which either of the Parties has the necessary rights for the purposes of the Program.

Beneficiary Assets shall mean Strata Manufacturing PJSC (Strata) and Aerospace Turbine Services & Solutions LLC (ATS&S), wholly-owned subsidiaries of Mubadala Investment Company PJSC.

Center shall mean the "**Aerospace Research and Innovation Center**" at Khalifa University in the UAE identified in Recital (C).

Confidential Information shall mean information disclosed under this Agreement which relates to pricing, technical design or other commercial information relating to these issues, which concerns the business or business interests of the Parties, including the content of this Agreement, and any such information disclosed prior to the Effective Date of this Agreement.

Deliverables shall mean the agreed deliverables identified in each Research Project plan.

Foreground IPR shall mean new IPR arising or developed by the Parties (whether jointly or individually) under this Agreement as a result of the Parties implementing the Program.

In-Kind Contribution has the meaning set out in Clause 4.9.

IPR shall mean any rights in or to any patents (including petty patent), inventions, copyright, database rights, design rights, registered designs, utility models, trade-marks and service marks (whether registered or unregistered), moral rights, know-how or confidential information in intellectual property, whether registerable or not and wherever existing in the world and including all applications and rights to apply for any of the foregoing rights.

Joint IPRs has the meaning set out in Clause 7.3.

Program means the agreed program scope as more fully-described in the appendices to this Agreement and as may be revised, amended and / or updated from time by the SMB in accordance with Clause 3.

SMB shall mean the senior management board comprising two (2) representatives from each Party, which will provide overall management and guidance in the conduct of the Center and the Program.

Term shall mean the period of four (4) years.

2. EFFECTIVE DATE, PURPOSE AND SCOPE

2.1 The Parties agree that this Agreement is intended to have retrospective effect, with effect from 28 November 2018 (**Effective Date**).

2.2 The Parties shall work jointly and individually and always in good faith with respect to each other, to achieve the Program in accordance with the terms of this Agreement.

2.3 This Agreement:

(a) shall not prevent either Party from entering into similar agreements with other parties;
(b) shall not commit either Party to enter into any other agreement arising from, or in connection with, the Program, other than for a license(s) of Foreground IPR as provided for in Clause 7 of this Agreement;
(c) places no obligations on the Parties to use, implement or conform to any of the results obtained; and
(d) does not imply any commitment on the part of either Party to procure equipment, devices or services from the other Party and shall not limit either Party's freedom of procurement.

cc

3. MANAGEMENT

3.1 Each Party shall be entitled to replace any of its members of the SMB, or to appoint a deputy or proxy who may act in place of any such appointed member. The Parties' initial members of the SMB shall be:

AHC:

(1) Dr. Abdel Qader Abusafieh
Email: aabusafieh@mubadala.ae

(2) Hashem Alkaabi
Email: hmalkaabi@mubadala.ae

Khalifa University:

(1) Dr. Steve Griffiths
Email: steven.griffiths@ku.ac.ae

(2) Prof. Lakmal Seneviratne
Email: lakmal.seneviratne@ku.ac.ae

The Khalifa University Senior Vice President – Research and Development, shall be appointed as Chairman of the SMB.

3.2 The SMB shall meet no less frequently than four (4) times in any twelve (12) month period.

3.3 The purpose of the SMB meetings will be to:
(a) set the objectives and direction of the Program;
(b) agree on detailed annual budget and Key Performance Indicators (**KPIs**); and
(c) agree on operational plans, including project staffing.

3.4 The SMB shall review progress against these objectives and KPIs. A description of the main functions of the SMB is appended as **Appendix 1** to this Agreement.

3.5 An SMB meeting shall be quorate if three (3) of the four (4) members are present. Agreement amongst the SMB will be by unanimous vote of all SMB members present at an SMB meeting.

3.6 Each Party shall ensure that its representatives on the SMB, whether past or present, keep confidential all Confidential Information disclosed to them on the terms of confidentiality that apply to that Party under this Agreement.

3.7 Khalifa University has designated two (2) Khalifa University faculty members to drive execution of research activities within the two technology areas defined in recital (F) (**Focus Areas**) to coordinate administrative activities associated with these Focus Areas within Khalifa University, including HR, finance, legal, security, and communications. These two individuals (the **ARIC Center Co-Directors**) have subject matter expertise in the Focus Areas and Khalifa University has designated the following faculty members, for an initial period of one (1) calendar year from the Effective Date:

Prof. Wesley Cantwell: ARIC Director for Advanced Materials & Processing
Email: wesley.cantwell@ku.ac.ae

Prof. Cesare Stefanini: ARIC Director for Robotics and Digital Technologies
Email: cesare.stefanini@ku.ac.ae

3.8 The ARIC Center Co-Directors shall be assessed and reviewed on an annual basis by the SMB. The ARIC Center Co-Directors may be renewed for subsequent periods of one (1) calendar year or terminated and replaced with alternate designated faculty members, in each case, by unanimous decision of the SMB.

3.9 The ARIC Center Co-Directors shall be responsible for coordinating the selection, scoping, staffing, and execution of Research Projects within their Focus Areas. The ARIC Center Co-Directors will also present the annual budget for the approval of the SMB on an annual basis, manage expenditures against the budget approved by the SMB and provide the SMB with appropriate forecasts and explanations of expenditure. The ARIC Center Co-Directors shall also report the progress of the Program to the SMB at such intervals and in such a manner as the SMB may specify.

3.10 All decisions related to budget and resource allocation for the Center (including the identity, skill, experience and remuneration of all personnel appointed or allocated to support the Center) shall be approved by the SMB. All budget and funding decisions shall be made in accordance with the funding allocation mechanics set out in Clause 4 below.

3.11 Within the Khalifa University organizational structure, the individuals employed to work in the Center shall conduct day-to-day activities of the Center under the management of the ARIC Center Co-Directors and with the supervision of the Chairman of the SMB. The ARIC Center Co-Directors will be responsible for identifying, selecting and recommending to the SMB suitably qualified and experienced people to work on the Research Projects. The SMB shall review and either ratify or reject these recommendations. Those people who are ratified by the SMB shall be hired by Khalifa University and allocated to the Center to work on the Research Projects.

3.12 AHC will assign a Project Manager (**AHC PM**) to coordinate Program matters and issues on a day-to-day basis in coordination with the ARIC Center Co-Directors and Khalifa University management and staff. The AHC PM will also serve as a liaison between the Center, AHC and the Beneficiary Assets to facilitate smooth, pragmatic, technical, legal, and financial transactions at both the Research Project and Center levels. The AHC PM can be one of the two (2) AHC members on the SMB.

3.13 The cost of the AHC PM will be charged at forty percent (40%) full–time equivalent to the Center's budget, up to a maximum of three hundred and fifty thousand dirhams (350,000 AED) per year.

3.14 The cost of each ARIC Center Co-Director will be charged at ten percent (10%) full–time equivalent to the Center's budget.

3.15 Both Parties acknowledge that from time to time their human resources allocated to work in the Program (whether hired by an AHC Affiliate and/or Khalifa University) may be required to pass certain appropriate security clearance(s) by the relevant UAE or other authorities. Each of the Parties shall use reasonable efforts to achieve such clearance. Any associated third party costs borne by the Parties, for obtaining such required security clearances will be paid from the Center Funds (as defined in Clause 4.4).

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3.16 The Parties recognize that the structured participation of Khalifa University research personnel allocated to each Research Project (for example the ARIC lab manager, research assistants, laboratory technicians, post-doctoral researchers and ARIC sponsored students) or AHC Affiliate's engineers and technicians will be necessary to execute each Research Project. The Parties agree to identify the involvement and function of each individual's participation to the Program and their cost shall be treated as part of the operating cost of the Center, and not as in-kind contribution by either Party. Such costs of participating individuals shall be included in the annual budgeting cycle to be approved by the SMB.

4. FINANCES

4.1 Each Party shall bear its own costs associated with the preparation and execution of this Agreement.

4.2 The Parties agree that the Center will be funded on an equal basis from AHC and Khalifa University in accordance with Clause 4.3 and the projected funding contributions to be made by the Parties from the Effective Date are set-out in Clause 4.4.

4.3 The Parties acknowledge that a total of estimated unused fund of the amount of 7.0 million AED will be carried over from the funds committed pursuant to the 2013 ARIC Agreement, to be used for funding the Program, in addition to the new contributions defined in Clause 4.4. This includes a commitment of 1.5M AED from the Center Funds for a 3D printer in 2018, which has been carried over to 2019.

4.4 AHC shall make available a total of three million dirhams only (3,000,000 AED) in cash funding for the Center (**AHC Funds**) and Khalifa University shall make available a total of three million dirhams only (3,000,000 AED) in funding for the Center including 80% in cash and 20% in-kind (**Khalifa University Funds**) during the Term (collectively, **Center Funds**). The Funding allocation from AHC and Khalifa University for the Center shall be according to the following schedule:

Year	2019	2020	2021	2022
Funds carried over from 2013 ARIC Agreement (AED)	7,000,000			
AHC cash contribution, inclusive of VAT (AED)	0	1,000,000	1,000,000	1,000,000
Khalifa University cash contribution (AED)	0	800,000	800,000	800,000
Value of Khalifa University in-kind contributions (AED)	0	200,000	200,000	200,000
Total cash and in-kind contributions (AED)	7,000,000	2,000,000	2,000,000	2,000,000

4.5 The Parties acknowledge that, since the Center is not a separate legal entity, any funds paid by the Parties shall transferred to a separate Khalifa University account, created by Khalifa University for the Center, to be utilized by the SMB pursuant to this Agreement.

4.6 The Center Funds may only be drawn down if approved by unanimous decision of the SMB. The two (2) ARIC Center Co-Directors, in coordination with AHC PM, shall be responsible for

recommending to the SMB that funds should be drawn from the Center Funds, to support the execution of the Program.

4.7 If the SMB unanimously approves the draw-down of Center Funds, the SMB shall minute thefollowing:

(a) the amount to be drawn down (**Drawn Amount**); and

(b) a description of the purpose for which the Drawn Amount is to be used.

4.8 The Parties agree that any monies contributed to the Program by the Parties that remain unused at the end of any year shall be automatically rolled over to the following year and added to the newly contributed funds.

4.9 The Parties agree that any monies contributed to the Program that remain unused at the end of the Term shall be returned to AHC and Khalifa University, based on the ratio of the Parties' total contribution to the Program, unless it is agreed by both Parties to extend this Agreement.

4.10 Details of the Center Funds (including their allocation and spend) shall be made available to the SMB at all times and all dispersals of the Center Funds shall be governed according to annual budgets unanimously approved by SMB.

4.11 In accordance with the terms of Clause 4.4 Khalifa University's financial contribution to the Program will include twenty per cent (20%) in-kind (i.e. non-cash) contribution as a recognition for providing space and all required support services for the Program such as HR, marketing, finance and accounting, administration, facilities management, utilities, IT, use of lab. and office space for the AHC PM and Research Project teams, furniture, provision of ICT infrastructure and other similar services. AHC will not make any in-kind contribution but may, from time to time, provide technical services to the Center, through its Beneficiary Assets, which will be compensated from the Center's approved budget, with the approval of the SMB.

4.12 A detailed annual budget shall be prepared and submitted by the ARIC Center Co-Directors and the AHC PM to the SMB for approval no later than December 15 of each year. The SMB will review and approve the budget within one (1) month of the submittal date.

4.13 The Parties agree to discuss in good faith what other sources of funding (including government funding) might be available in the future to support the Center's activities.

4.14 Value Added Tax ("VAT"), or other similar taxes, will be invoiced by Khalifa University to AHC at the standard rate, as applicable, at the time of charging. The budget amount for the AHC Funds is inclusive of VAT and therefore VAT will be paid by AHC from the AHC Funds.

5. TERM

This Agreement shall commence on the Effective Date and continue in full force and effect for the Term. This Agreement shall be renewable for one (1) additional two (2) year period, conditional on the written agreement of each Party, prior to the expiry of the Term.

6. CONFIDENTIALITY

6.1 All information, including all Confidential Information, shared under this Agreement by one Party (**Provider**) to the other Party (**Recipient**) will, unless it is made expressly clear by the

Provider on or with the disclosure at the time, be available for sharing with the Recipient solely for the purpose of achieving the Program and Deliverables in accordance with this Agreement.

6.2 Without prejudice to Clause 6.1 above and in respect of all Confidential Information, whether of a technical nature or otherwise communicated by the Provider to the Recipient in connection with this Agreement, whether before or after execution of this Agreement, each of the Parties undertakes to the other that:

(a) it will not use any Confidential Information for any purpose other than the carrying out of its obligation, or making use of its right, under this Agreement, or other than in accordance with the terms of this Agreement; and

(b) it will (and will ensure that its employees and sub-contractors) treat the Confidential Information as confidential and use the same degree of care as the Recipient uses for its own confidential information of like sensitivity and not disclose it to any other persons without written consent of the Provider,

provided always that such undertakings shall not extend to any Confidential Information which is:

i. in the possession of the Recipient at the date of receipt from the Provider; or
ii. is public knowledge (otherwise than by reason of any breach of confidentiality obligation to the Provider by the Recipient); or
iii. obtained by the Recipient from another person in good faith without breach of confidentiality obligation to the Provider; or
iv. independently acquired by the Recipient as a result of work carried out by a person to whom no disclosure of the relevant Confidential Information has been made; or
v. released in compliance with legal obligations to provide Confidential Information to government, regulatory authorities or judicial authorities.

(c) Nothing in this Clause 6.2 shall prevent the communication of Confidential Information to any third party insofar as is necessary for carrying out the Program. AHC shall be entitled to share Confidential Information with any wholly owned subsidiary of Mubadala Investment Company PJSC or any of its customers participating in the Research Projects, subject always to AHC being liable for the acts or omissions of such third parties, regarding the protection and / or disclosure of Confidential Information.

6.3 Regarding any permitted communication of such Confidential Information by the Recipient to any other person, the Recipient shall require such other person to first sign a non-disclosure agreement of equivalent scope to the undertaking in Clause 6.2 and the Recipient shall use all reasonable endeavors to ensure due observance and performance by such other person of the provisions of such non-disclosure agreement.

6.4 Any information relating to AHC Affiliates and their OEM customers which has been exchanged with or disclosed to Khalifa University staff participating in a Research Project, either indirectly through AHC Affiliates or directly through the OEM customers during the course of a Research Project, shall constitute Confidential Information.

7. INTELLECTUAL PROPERTY RIGHTS (IPR)

Title to Background IPR and Foreground IPR:

7.1 Nothing in this Agreement shall have the effect of transferring or assigning a Party's ownership rights or title in any of its Background IPR.

7.2 From time to time, each Party (**Notifying Party**) shall notify the other Party of any Background IPR owned by it or licensed to it that may be of use for the purpose of achieving the Program and the Deliverable. If both Parties agree that such Background IPR may be of use, the Notifying Party shall:

(a) grant, subject to any existing confidentiality obligation and the confidentiality obligations under this Agreement, a license of the relevant Background IPR owned by it; and / or

(b) use reasonable endeavors to procure a sub-license of the relevant Background IPR licensed to it by a third party,

in each case to the other Party for the sole purpose of achieving the Program and the Deliverables.

Any such license of Background IPR will be on a royalty-free basis. However, in exceptional circumstances, such as where Background IPR is licensed from a third party on commercial terms, then exceptions to such Background IPR licensing rules may be agreed and if so these will be specifically between the Parties acting in good faith.

7.3 Subject to the provisions of Clause 7.8, all Foreground IPR arising from the implementation of the Program shall be owned by the Parties jointly in equal shares (**Joint IPR**). Subject to Clause 7.4, each Party:

a) shall be entitled to use and exploit such Joint IPR for its own business purpose; and
b) shall have the right to grant sub-licenses to any of its Affiliates, in each case without payment or permission from the other Party, but upon giving notice within thirty (30) days thereof.

7.4 If either Party wishes to have exclusive rights in any Joint IPR, then such Party shall issue the other Party with a notice in writing and the Parties shall negotiate in good faith, taking into account the current business practices and standards related to the particular technology at the time.

Ownership of IPR in developments to Joint IPR made by a single Party:

7.5 All IPR that are developed or created independently by a single Party in any exploitation of joint IPR pursuant to Clause 7.3 shall be owned by the developing or creating Party.

Disclosure of Foreground IPR

7.6 The Parties will each make all reasonable efforts to ensure that their respective Research Project personnel prepare, sign and submit regular written disclosures of Research Project IPR (**IP Disclosure**) to Khalifa University's "Office of Technology Management and Innovation" (ip@ku.ac.ae), prior to any public disclosure thereof. Within thirty (30) days of receipt of an IP Disclosure, the SMB will be provided with a copy of the IP Disclosure, together with a general description of any Background IPR, to the extent the Office of Technology Management and Innovation reasonably believes that any Background IPR is necessary to allow a successful exploitation of the matters set forth in the IP disclosure.

7.7 Where the Parties create Joint IPR and decide to apply for registration of such Joint IPR, the Parties shall jointly apply for registration in joint names (or, if permissible under the law of the relevant territory, nominate one of the Parties to register in joint names on behalf of both Parties) the Joint IPR in the United Arab Emirates and elsewhere, if such Joint IPR is capable of registration. The Parties shall agree on a case-by-case basis the territories other than the United Arab Emirates in which such Joint IPR shall be protected. The Parties agree that the costs of such protection shall be shared equally between the Parties. The total costs contributed by each Party with respect to such protection shall be mutually agreed between the Parties in writing prior to incurring such expenditure.

Licenses to Foreground IPR:

7.8 The Parties hereby grant to each other a fully-paid up, global, perpetual, non-exclusive, royalty-free license to their respective interests in the Joint IPR for the limited purposes of internal use, as may be required in the ordinary course of business. Such license expressly includes the business activities of all AHC Affiliates and their customer programs. Such activities shall include business where Joint IPR is, or may be, included or relied upon in any such product or process method.

7.9 Neither Party shall have the right or license to use or exploit any Joint IPR for the principle purpose of deriving any use or royalty fee from a third party without the express prior written authorization from the SMB, voting unanimously.

7.10 In the event that the SMB agrees to a Party exploiting any Joint IPR for the specific purpose of entering into a license, sub-license or transfer of Joint IPRs to derive a royalty fee or any other kind of financial revenue from a third party, the intention is that, subject to the provisions of Clause 7.10 below, each Party will share equally in the profit or financial gain that arises directly from any such transaction. If a Party incurs internal or external costs in the exploitation activities, such costs shall first be recovered by that Party before the foregoing profit share.

Reliance on Foreground IPR

7.11 Subject to Clauses 11 and 12.7 the provisions of this Clause 7 shall survive the expiration or termination of this Agreement.

8. PUBLICATION PERMISSIONS

8.1 The ARIC Center Co-Directors , in coordination with the AHC PM and operating under processes and controls to be agreed by the SMB, will be responsible for the day-to-day management of publication and/or disclosure permissions.

For the avoidance of doubt no publication of information relating to the Program shall be made without the appropriate ARIC Center Co-Director's written permission and after review and approval from the AHC Program Manager.

8.2 Khalifa University will provide AHC with a copy of the proposed publication at least six (6) weeks before the initial submission date and Khalifa University will provide AHC with the final draft publication and / or disclosure at least one (1) month prior to the publication / disclosure

date. No AHC proprietary or industry sensitive information shall be included in such publication and / or disclosure.

8.3 AHC shall respond in writing to Khalifa University within two (2) weeks of receiving a copy of the proposed publication and / or disclosure from Khalifa University. AHC reserves the right to require Khalifa University to delete from such publication any confidential or industry sensitive information. In the event the publication identifies any patentable invention, Khalifa University agrees to delay such publication for up to an additional three (3) months in order to allow time for the preparation and filing of a patent application.

8.4 AHC shall be acknowledged in any publication unless AHC desires otherwise and so advises Khalifa University in writing.

9. PUBLICITY

9.1 Nothing in this Agreement gives either Party permission to use the other Party's name, trademark or trade name in any publication or respect of any service or item to be supplied to the public, whether relating to the Program, a Deliverable of otherwise and any such use shall be subject to the explicit prior written consent of the other Party.

9.2 Neither of the Parties shall make any press announcement or issue any press release relating to the Agreement nor in any other way publicize this Agreement without the written consent of the other Party.

10. SETTLEMENT OF DISPUTES

10.1 Should there be a dispute between the Parties in connection with or arising out of this Agreement or the breach, termination or validity hereof (**Dispute**); each Party will use its reasonable endeavours to settle the Dispute through discussion and resolution at the SMB. If any Dispute cannot be resolved by the SMB, within a period of forty-five (45) calendar days, it shall be escalated to the Chairman of AHC and the President of Khalifa University or their respective designees, who shall meet to discuss and resolve the Dispute.

10.2 If the Chairman of AHC and the President of Khalifa University, or their respective designees, are unable to resolve the Dispute the Dispute shall be finally settled in accordance with the rules promulgated by the Abu Dhabi Commercial Conciliation and Arbitration Center (**Rules**). Notwithstanding the foregoing, either Party may seek injunctive relief in any court of competent jurisdiction against the improper use or disclosure of Confidential Information. It is hereby agreed that :

(a) the seat of the arbitration shall be the city of Abu Dhabi;
(b) there shall be three (3) arbitrators, with each Party selecting one (1) arbitrator within fifteen (15) days after the claimant commences the arbitration, by giving written notice of the arbitration and the third (and presiding) arbitrator selected by two (2) arbitrators so selected within thirty (30) days after their appointment. If the two (2) arbitrators cannot agree on the third arbitrator within such thirty (30) day period, the third arbitrator shall be appointed in accordance with the Rules;
(c) the language of the arbitration shall be English;
(d) the award shall be in writing and shall set forth in reasonable details the facts of the Dispute and the reasons for the tribunal's decision; and

(e) the award in such arbitration shall be final and binding upon the Parties and judgment thereon may be entered in any court having jurisdiction for its enforcement.

11. WITHDRAWALS

11.1 Either Party (**Withdrawing Party**) may withdraw from this Agreement by giving ninety (90) days written notice to the other Party (**Notice of Withdrawal**). The SMB shall convene within fifteen (15) days of receipt of the Notice of Withdrawal and shall agree on the Center obligation existing at the time of the Notice of Withdrawal. The Parties agree to provide funds in equal amounts to meet the obligations determined by the SMB, pursuant to a Drawdown Notice issued by the SMB in accordance with Clause 4.8. At the conclusion of such ninety (90) days period, this Agreement shall terminate.

11.2 All Background IPR licenses granted by the Withdrawing Party prior to it issuing its Notice of Withdrawal shall continue in full force and effect, but only so as to achieve the Deliverables approved by the SMB prior to the written notice being served.

11.3 The Withdrawing Party agrees:

(a) in-so-far as the Program or any new Deliverables after the service of the notice in Clause 11.1 above require licenses to the Withdrawing Party's Background IPR, to negotiate such a license in good faith and on reasonable terms, including reasonable commercial terms.

(b) that all the rights acquired by the Withdrawing Party prior to its date of withdrawal to the Background IPR and Foreground IPR of the other Party shall cease.

11.4 All items and tangible property belonging to the other Party at the date of termination of the Agreement referred to in Clause 11.1 will be promptly returned to the owning Party or destroyed, as instructed by the owning Party.

12. TERMINATION

12.1 This Agreement may be terminated at any time upon the agreement of both Parties.

12.2 A Party may terminate this Agreement with immediate effect by giving notice to the other Party:

(a) in the event that such Party is affected by a Force Majeure Event (as defined in Clause 17) for longer than eight (8) weeks; or

(b) if the other Party commits a material breach of this Agreement that is capable of remedy, and either fails to remedy, or has not taken substantial steps towards remedying the breach, within thirty (30) days of a written notice to do so; or

(c) if the other Party commits a material breach of this Agreement which cannot be remedied, or which represents a breach of its confidentiality obligations under this Agreement; or

(d) if the other Party is repeatedly in breach of this Agreement; or

(e) if the other Party is the subject of a bankruptcy order, or becomes insolvent, or makes any arrangement or composition with or assignment for the benefit of their creditors, or goes into either voluntary (otherwise than for reconstruction or amalgamation), or compulsory liquidation or a receiver or administrator is appointed over their assets, or ceases or threatens to case carrying on its business (or any local equivalent).

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12.3 If a Party delays in acting upon a breach of this Agreement, that delay will not be regarded as a waiver of the breach. If a Party waives a breach of this Agreement that waiver is limited to that particular breach.

12.4 The termination of this Agreement shall not affect any obligation or right of the Parties, which have accrued prior to such breach.

12.5 In the event of termination both Parties agree that they shall not be held responsible or liable for any outstanding commitments or costs incurred by other Party to this Agreement.

12.6 The provisions of Clauses 1, 6, 7, 8, 9,10 ,12, 13, 14, 15, 20, 21, 25, 26, 27 and 28 shall survive the termination of this Agreement.

12.7 If a Party terminates this Agreement in accordance with Clause 12.2 (other than in respect of 12.2 (a)), that Party may terminate any rights and licenses granted to the other Party under this Agreement.

12.8 If this Agreement is terminated for any reason, any AHC Funds and Khalifa University Funds that have been drawn down for a specific purpose in accordance with Clause 4 shall remain valid and available to the Center for the approved and specific purpose.

12.9 Subject to Clause 12.8 if, on termination of this Agreement for any reason, there are any AHC Funds and / or Khalifa University that have been drawn down for a specific purpose in accordance with Clause 4 and which have not yet been utilized and are no longer required, such funds shall be returned to the Parties on the basis that they were contributed.

13. INDEMNITY

13.1 Subject to the provisions of Clause 14 below and without prejudice to any other rights or remedies available to it, each Party (**Indemnifying Party**) shall indemnify the other Party against all claims and proceedings, damage, costs and expenses arising or incurred in respect of:

(a) death or personal injury of the other Party's personnel in relation to the performance of the Program, to the extent caused by the Indemnifying Party's own negligence or wilful acts or omission; or

(b) death or personal injury of any other third party to the extent arising as a result of the negligence or wilful acts or omissions of the Indemnifying Party in relation to the performance of the Program; or

(c) Loss of or damage to any party's or third party's property to the extent arising as a result of the negligence or willful acts or omissions of the indemnifying party in relation to the performance of the Program.

13.2 Each Party shall notify the other Party in writing of any such allegation received and shall not make any admissions unless the other Party gives prior written consent, such consent shall not be unreasonably withheld or delayed .

14. LIMITATION OF LIABILITY

14.1 Subject to Clause 14.3 below neither Party shall be liable to the other under or in connection with the Agreement for any indirect or consequential loss or damage.

14.2 Subject to Clause 14.3 below the total liability of any Party to the other under or in connection with the Agreement and for the Term shall not exceed the sum of Three million Dirhams (AED 3,000,000), being the total sum contributed by each of the Parties under this Agreement.

14.3 Clause 14.1 and 14.2 above shall not apply to loss or damage arising out of or in connection with damage suffered which liability cannot be limited or excluded by law.

15. WARRANTY, DEFEND AND HOLD HARMLESS

15.1 A Party shall exercise reasonable care to ensure the accuracy of advice, information or drawings provided to the other Party and the Party receiving such advice, information or drawings shall conduct the necessary due diligence on the same. The Party giving such advice, information or drawings, accepts no liability, contractual or otherwise, in respect of any claim or claims arising from the use of such advice, information or drawings; unless such liability arises from negligence, wilful act or omission.

15.2 Each Party warrants, to the best of its knowledge that the use of any advice, information or drawings provided to the other Party will not result in infringement of any third party rights.

15.3 Neither Party any makes representation or warranty that advice, information or drawings provided by its servants or agents is accurate, conform to contract or free from defects, latent or patent; nor does it warrant that the use of any advice, information or drawings provided in connection with the Program activities will produce the desired objective.

15.4 Each Party will defend and hold harmless the other Party, its servants or agents, for all claims brought against the Parties in connection with either Party's use, solely or with any Affiliate or third party, of Joint IPR.

16. INSURANCE

16.1 Each Party shall at its own expense maintain throughout the term such insurance as is legally required in the UAE.

16.2 A Party shall notify the Center Director as soon as it is aware of any event, which may give rise to an obligation to indemnify another party under this Agreement, or to a claim under any insurance required by the Agreement.

17. FORCE MAJEURE

Both Parties shall be excused from performance of their obligation if and to the extent that such performance is prevented by reason of any strike, lockout, labor disturbance, government action, riot, armed conflict, fire, flood, drought, failure of power supply, unavailability or breakdown of normal means of transport, act of God, or other event reasonably beyond a Party's control (**Force Majeure Event**), provided always that both Parties use their respective reasonable endeavors to limit the effect of and, if possible, resolve the Force Majeure Event. If a Party is so delayed and

the Force Majeure Event period exceeds thirty (30) days, the matter shall be escalated to the SMB for resolution.

18. BUSINESS PARTNERSHIP

Nothing in this Agreement shall be deemed to create a partnership or agency between the Parties for any purpose.

19. ASSIGNMENT

Subject to having provided prior written notice thereof to the other Party, either Party may assign or transfer either in whole or in part its right and obligation under this Agreement to an Affiliate of such Party. Neither Party shall, without the prior written consent of the other Party, assign or otherwise transfer partially nor totally its rights and obligation under this Agreement other than as provided in this Clause 19.

20. LANGUAGE

This Agreement is drawn up in English and all documents, notice and meetings for its application and /or extension shall be in English.

21. NOTICES

All notices relating to this Agreement shall be given by prepaid first class post, facsimile or email to the addressee at the address stated below, or such other address as the addressee shall have for the time being notified to the other Party, All notices shall be deemed to have been delivered: (i) if by letter at the expiration of forty-eight (48) hours after posting; or (ii) if by facsimile or e-mail the end of the next working day. Notice of withdrawal or breach shall be given by registered post.

In the case of the AHC, notices shall be delivered to:

Aerospace Holding Company LLC
C/o Mubadala Development Company PJSC
PO Box 45005
Al Mamoura Building A
Intersection of Mirror Road &15th Street
Abu Dhabi, United Arab Emirates

For the attention of: Chairman of Aerospace Holding Company LLC
Telephone: +971 (2) 4130000
Fax: No: +971 (2) 413 0102
With a copy email to legalunit@mubadala.ae

In the case of **Khalifa University**, notices shall be delivered to:

Khalifa University of Science and Technology
PO Box 127788
Abu Dhabi, UAE
For the attention of the General Counsel
general.counsel@ku.ac.ae

With a copy email to Dr. Steve Griffiths, SVP Research & Development
steven.griffiths@ku.ac.ae

22. HEADINGS.

The Clause headings of this Agreement are for reference purposes only and shall not affect its construction.

23. AMENDMENTS

Amendments or changes to this Agreement shall only be valid of made in writing and signed by an authorized signatory of each Party.

24. SUPERVENING ILLEGALITY

If any provision or item of this Agreement is held to be invalid or illegal under any applicable statement or rule of law, such provision shall be deemed omitted from this Agreement to the extent of such invalidity or illegality but the remainder of this Agreement shall continue in full force and effect and the Parties shall negotiate in good faith to replace the invalid or illegal provision or term with a valid and legal provision or term having effect as closely as possible to the provision or term being replaced.

25. THIRD PARTIES

Except as expressly provided in this Agreement, this Agreement shall not confer, or purport to confer on a third party any benefit or right to enforce any term of this Agreement. However a right granted to a Party hereunder shall extend to any entity which controls that Party, any entity which that Party controls, and any entity under common control with that Party, where "control" means the ownership of majority of the voting rights in an entity, or the ability to direct its management or policies.

26. APPLICABLE LAW

This Agreement shall be governed by and construed in accordance with the laws of the UAE and the laws of the Emirate of Abu Dhabi.

27. WAIVER

No failure to exercise or delay in the exercise of any right or remedy which any Party may have under this Agreement or in connection with the Agreement shall operate as a waiver thereof, and nor shall any single or partial exercise of any such right or remedy prevent any further or other exercise thereof or any other such right or remedy.

28. ENTIRE AGREEMENT

This Agreement and its appendices, and any other agreements expressly anticipated to be entered into, or licenses granted, under this Agreement, constitute the entire agreement between the Parties in respect of the Program and except as otherwise expressly provided herein supersede all previous negotiations, commitments and writing concerning the Program.

29. FURTHER ASSURANCE

Each Party shall, and shall use reasonable endeavors to, procure that any necessary third party shall execute such documents and do such acts and things as the other may reasonably require for the purpose of giving to the other the full benefit of all the provisions of this Agreement.

(Remainder of Page Intentionally Left Blank; Signature Page Follows)

WHEREAS the Parties have hereby caused their duly authorized representatives to execute and deliver this Agreement on the date first above written.

SIGNATORIES

.....

For and on behalf of **AEROSPACE HOLDING COMPANY LLC**

Name:

Title:

Date:

.....

For and on behalf of **KHALIFA UNIVERSITY OF SCIENCE AND TECHNOLOGY**

Name:

Title: GVP

Date: 29/9/19

Appendix 1: Role of Senior Management Board (SMB)

a) Set the direction of the Program and approve each Research Project.

b) Approve the annual budgets of the Center.

c) Provide overall management and guidance in the conduct of the Center and the Program.

d) Set the staffing policies for the Center and the Program.

e) Review and approve all recruitment and pay decisions.

f) Review and approve all decisions to utilise funds within the Khalifa University ARIC ledger account.

g) Agree on the appropriate process to manage and disperse funds.

h) Use its reasonable endeavours to resolve any dispute arising between Parties, in accordance with Clause 10.

ON

File | Message | Attachment Tools | Attachments | Tell me what you want to do...

FW: ARIC new funding agreement - Message (HTML)

Hisham Abdulmanan Al Awar | Abdulla Ahmed Shams Al Awadhi; KUAccountReceivables@ku.ac.ae

FW: ARIC new funding agreement

ARIC Collaborative Rese...
2 MB

From: Khulood Al Ali [mailto:khulood.alali@ku.ac.ae]
Sent: Monday, December 21, 2020 8:36 AM
To: Hisham Abdulmanan Al Awar <hisham.alawar@ku.ac.ae>
Cc: Muhammed Ilyas <muhammed.ilyas@ku.ac.ae>; KU Account Receivables <KUAccountReceivables@ku.ac.ae>; Abdulla Al Mansoc
<alanood.alkhoori@ku.ac.ae>
Subject: FW: ARIC new funding agreement

Dear AR team,

Kindly arrange to raise an invoice from ARIC to KUST for yearly contribution 2021/2022 AED 1.6M as attached & insure it is paid by K

Regards,

Khulood Al Ali
Director, Finance Operations
Finance Operations

جامعة خليفة
Khalifa University

P O Box 127788, Abu Dhabi, UAE
T +971 2 312 3335

Type here to search

1 9:22 AM

ori <abdulla.almansoori@ku.ac.ae>; Al Anood Al Khoori

:U before the closing 24th Dec

9:23 AM
12/21/2020
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